

Col A Khanna Sm Retd vs Delhi Gymkhana Club Limited & Anr on 13 September, 2024

Author: Ashok Bhushan

Bench: Ashok Bhushan

NATIONAL COMPANY LAW APPELLATE TRIBUNAL
PRINCIPAL BENCH, NEW DELHI

I.A. No. 6414 of 2024
In
Comp. App. (AT) No. 224 of 2024

IN THE MATTER OF:

Col. Ashish Khanna, SM (Retd.) ...Appellant(s)

Versus

Delhi Gymkhana Club Ltd. & Anr. ...Respondent(s)

Present:

For Appellant : Col A. Khanna, SM
Mrs. Niji Sapra-SFIO complainant.
For Respondents : Ms. Raveena Rai, Advocate for Delhi Gymkhana Club.
Mr. Raunak Dhillon, Ms. Isha Malik and Mr. Jeezan
Riyaz, Mr. Rochit Bakliwal, Advocates for R-2.

ORDER

(Hybrid Mode) 13.09.2024: I.A. No. 6414 of 2024 This is an application filed by the Applicant/Appellant praying for making following prayers:

"a. Recall order dated 14.08.2024, passed in CA (AT)- 224/2024;

b. Pass an order directing that enquiry be conducted on the Registry's ex-facie breach of this Hon'ble Tribunal's Order dated 24.07.2024".

The appeal was filed by the Appellant challenging the order dated 05.04.2024 passed by National Company Law Tribunal, New Delhi, Principal Bench which appeal was heard. The appellant himself appeared and was heard. The appeal was finally dismissed by the order dated 14.08.2024. Appellant has prayed for recall of the order. Five Member Bench of this Tribunal in "Union Bank of India (Erstwhile Corporation Bank) vs. Mr. Dinkar T. Venkatasubramanian & Ors." in I.A. No. 3961 of 2022 in Company Appeal (AT) (Ins) No. 729 of 2020, has already taken the view that application for recall of a judgment which has been passed after hearing the parties is not maintainable.

We thus, do not find any merit in the application. Application is dismissed.

[Justice Ashok Bhushan] Chairperson [Arun Baroka] Member (Technical) sr/nn